

CROWN PAINTS KENYA PLC

PRIVACY NOTICE

1. Introduction

Crown Paints (K) PLC takes data protection seriously. The use of Crown Paints (K) PLC Supplier Portal application is not possible without the provision of some personal data; however, if a Data Subject wishes to use certain services via our website, processing of further personal data could become necessary. If the processing of personal data is necessary and there is no statutory basis for such processing, we will obtain consent from the data subject.

Personal Data processing shall always be in line with The Data Protection Act, No.24 of 2019 (DPA), and the Regulations made under the Act. in accordance with the law of Kenya. By means of this Privacy Notice, we would like to inform the General Public why we collect and process personal data and Data Subjects rights relating to the collection and processing of Personal Data.

2. Definitions

The data protection notice of **Crown Paints (K) PLC** is based on the terms used by the Office of the Data Protection Commissioner of Kenya for the adoption of the Data Protection Act, 2019, but for ease of understanding the following definitions apply.

Controller: The natural or legal person, public authority, agency or other body which, alone or jointly with others, determines the purposes and means of the processing of personal data.

Personal Data: Any information relating to an identified or identifiable natural person (“Data Subject”). An identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural or social identity of that natural person.

Data Subject: Any identified or identifiable natural person, whose personal data is processed by the controller responsible for the processing.

Processor: A natural or legal person, public authority, agency or other body which processes personal data on behalf of the controller.

Recipient: A natural or legal person, public authority, agency or another body, to which the personal data are disclosed, whether a third party or not. However, public authorities which may receive personal data in the framework of a particular inquiry in accordance with Union or Member State law shall not be regarded as recipients; the processing of those data by those public authorities shall be in compliance with the applicable data protection rules according to the purposes of the processing.

Third Party: A natural or legal person, public authority, agency or body other than the data subject, controller, processor and persons who, under the direct authority of the controller or processor, are authorised to process personal data.

Restriction of Processing: The marking of stored personal data with the aim of limiting their processing in the future.

Processing: Any operation or set of operations which is performed on personal data or on sets of personal data, whether by automated means, such as collection, recording, organisation, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction.

Profiling: Any form of automated processing of personal data consisting of the use of personal data to evaluate certain personal aspects relating to a natural person to analyse or predict aspects concerning that natural person's performance at work, economic situation, health, personal preferences, interests, reliability, behaviour, location or movements.

Consent: Consent of the data subject is any freely given, specific, informed and unambiguous indication of the data subject's wishes by which he or she, by a statement or by a clear affirmative action, signifies agreement to the processing of personal data relating to him or her.

3. Name and Address of the Controller

The Controller is:

CROWN PAINTS (K) PLC,
CROWN PAINTS HEAD OFFICE,
P.O. BOX 78848, LIKONI ROAD, INDUSTRIAL AREA, NAIROBI, KENYA.
Phone: +254 (0) 20 2165703/5/6, 2032751, 0709 887 000.
Email: info@crownpaints.co.ke. Website: <https://www.crownpaints.co.ke>

4. Name and Address of the Data Protection Officer

The Data Protection Officer of the Controller is:

DATA PROTECTION OFFICER,
CROWN PAINTS (K) PLC,
CROWN PAINTS HEAD OFFICE,
P.O. BOX 78848, LIKONI ROAD, INDUSTRIAL AREA, NAIROBI, KENYA.
Phone: +254 (0) 20 2165703/5/6, 2032751, 0709 887 000.
Email: info@crownpaints.co.ke. Website: <https://www.crownpaints.co.ke>

A Data Subject may contact our Data Protection Officer directly with any enquiries relating to Data Protection.

5. Name and Address of the Data Commissioner

The Data Commissioner overseeing the Controller is:

OFFICE OF THE DATA PROTECTION COMMISSIONER,
12TH FLOOR, BRITAM TOWERS, HOSPITAL ROAD, UPPERHILL,
Phone: +254 (0) 752 896867, (0) 796 954 269.
Website: www.odpc.go.ke

6. Cookies

With cookies, Crown Paints (K) PLC can provide the users of this website with more user-friendly services that would not be possible without the cookie setting.

By means of a cookie, the information and offers on our website can be optimised with the user in mind. Cookies allow us to recognise our website users to make it easier for users to utilise our website services e.g., does not have to enter access data each time the website is accessed, because this is taken over by the website, and the cookie is thus stored on the user's computer system. The data subject may, at any time, prevent the setting of cookies through our website by means of a corresponding setting of the Internet browser used, and may thus permanently deny the setting of cookies. Furthermore, already set cookies may be deleted at any time via an Internet browser or other software programs. This is possible in all popular Internet browsers. If the data subject deactivates the setting of cookies in the Internet browser used, not all functions of our website may be entirely usable.

7. Reasons/purposes for processing information

The following is a broad description of the way this Crown Paints (K) PLC/data controller processes personal information. We process personal information to enable us to serve our clients and transform lifestyle by providing world-class coating solutions while caring for the environment.

We collect information relating to the above reasons/purpose from the following sources:

- The Data Subject directly (e.g., from information entered in forms)
- The Data Subject indirectly (e.g., information collected when you browse our site such as IP address and Operating System)
- Publicly Available Registers (e.g., Electoral Roll)
- Social Media (e.g., Twitter, LinkedIn, Facebook)
- Research provided by Third Party Providers including Search Engines

We process information relating to the above reasons/purposes. This information may include:

- Personal details
- Business activities of the person whose personal information we are processing.
- Goods and services provided.
- Financial details
- Education details
- Employment details

We process personal information about our:

- Customers
- Clients and employees
- Complainants and enquirers
- Suppliers
- Advisers and other professional experts

We sometimes need to share the personal information we process with the individual themselves and with other Institutions. Where this is necessary, we are required to comply with all aspects of the Data Protection Act (DPA) as it applies. We may need to share some of the personal information we process with one or more third parties.

Where necessary or required we share information with:

- business associates and other professional advisers
- financial Institutions
- current, past or prospective employers
- educators and examining bodies.
- suppliers and services providers

8. Rights of the data subject

DPA 2019 affords Data Subjects with rights. These rights are summarised below.

The right of Confirmation

Each data subject shall have the right to obtain from the controller the confirmation as to whether personal data concerning him or her are being processed.

The right of Access

Each data subject shall have the right to obtain from the controller free information about his or her personal data stored at any time and a copy of this information. Furthermore, the data subject shall have a right to obtain information as to whether personal data are transferred to a third country or to an international organisation. Where this is the case, the data subject shall have the right to be informed of the appropriate safeguards relating to the transfer.

Right to Rectification

Each data subject shall have the right granted by the legislator to obtain from the controller without undue delay the rectification of inaccurate personal data concerning him or her. Considering the purposes of the processing, the data subject shall have the right to have incomplete personal data completed, including by means of providing a supplementary statement.

Right to Erasure (Right to be forgotten)

Each data subject shall have the right to obtain from the controller the erasure of personal data concerning him or her without undue delay, and the controller shall have an obligation to erase personal data without undue delay where one of the statutory grounds applies, as long as the processing is not necessary.

Right of Restriction of Processing

Each data subject shall have the right granted by the legislator to obtain from the controller restriction of processing where a statutory reason applies.

Right to Data Portability

Each data subject shall have the right granted by the legislator to receive the personal data concerning him or her, which was provided to a controller, in a structured, commonly used and machine-readable format.

Right to Object

Each data subject shall have the right to object, on grounds relating to his or her situation, at any time, to the processing of personal data concerning him or her.

Automated individual decision-making, including profiling.

Each data subject shall have the right not to be subject to a decision based solely on automated processing, including profiling.

Right to Withdraw Consent

Where consent forms the basis for processing, Data Subjects shall have the right to withdraw his or her consent to the processing of his or her personal data at any time. Data Subjects can withdraw consent by logging into the user portal, clicking the privacy link in the menu and then updating the privacy settings as required. Data Subjects can also contact the Data Protection Officer or any other employee to withdraw consent.

Right to Complain to the Supervisory Authority

Where consent forms the basis for processing, Data Subjects shall have the right to withdraw his or her consent to the processing of his or her personal data at any time. The details of the Supervisory Authority are contained at the top of this Privacy Notice.

9. Legal basis for the processing

The legal basis for processing shall be where:

- The data subject has given consent to the processing of his or her personal data for one or more specific purposes.
- Processing is necessary for the performance of a contract to which the data subject is party or to take steps at the request of the data subject prior to entering a contract.
- Processing is necessary for compliance with a legal obligation to which the controller is subject.
- Processing is necessary to protect the vital interests of the data subject or of another natural person.
- Processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller.
- Processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data where the data subject is a child.

10. The Legitimate Interests pursued by the Controller or by a Third Party

Where the processing of personal data is based on our legitimate interest, it is to carry out our business in favour of the well-being of all our employees and the shareholders.

11. Security of Processing

As the Controller, Crown Paints (K) PLC has implemented technical and organisational measures to ensure personal data processed remains secure, however absolute security cannot be guaranteed. Should a Data Subject have a particular concern about a particular method of data transmission, we will take reasonable steps to provide an alternative method.

12. Transfers

It may sometimes be necessary to transfer personal information overseas. When transfers are needed, information may be transferred to countries or territories around the world. Any transfers made will be in full compliance with all aspects of the Data Protection Act, 2019 and in accordance with the country-specific legislation applicable to Crown Paints (K) PLC.

13. Personal Data Retention Periods

The criteria used to determine the retention period of personal data is the respective statutory retention period within the Member State. After the expiration of that period, personal data shall be securely deleted, as long as it is no longer necessary for the fulfilment of the contract, the initiation of a contract, or in relation to other legal proceedings.

14. Contractual obligation of the data subject to provide the personal data and the possible consequences of failure to provide such data

For clarity, the provision of personal data is partly required by law (e.g., tax regulations) or can also result from contractual provisions (e.g., information on the contractual partner). Sometimes it may be necessary to conclude a contract that the data subject provides us with personal data, which must subsequently be processed by us. The data subject is, for example, obliged to provide us with personal data when our company signs a contract with him or her. The non-provision of the personal data would have the consequence that the contract with the data subject could not be concluded.

15. Automated decision-making & Profiling

We do not process personal data for automatic decision-making or profiling.

16. Data protection for Employment & Recruitment Procedures

The data controller shall collect and process the personal data of applicants for the purpose of the processing of the application procedure. The processing may also be carried out electronically. This is the case, in particular, if an applicant submits corresponding application documents by e-mail or by means of a web form on the website to the controller. If the data controller concludes an employment contract with an applicant, the submitted data will be stored for the purpose of processing the employment relationship in compliance with legal requirements. If no employment contract is concluded with the applicant by the Controller, the

application documents shall be automatically erased two months after notification of the refusal decision, provided that no other legitimate interests of the controller are opposed to the erasure. Other legitimate interests could be complying with country-specific legislation.

17. Data protection notification concerning the use of Supplier Portal Application

On this website, the controller has integrated the component of a third-party service services. This service performs the following functions: -

- Self-registration of suppliers
- Viewing of LPO issued to the supplier.
- Allow Suppliers to respond to Request for Quotations

Further information and the applicable data protection provisions of the service can be requested from the controller.

18. General

You may not transfer any of your rights under this privacy notice to any other person. We may transfer our rights under this privacy notice where we reasonably believe your rights will not be affected.

If any court or competent authority finds that any provision of this privacy notice (or part of any provision) is invalid, illegal or unenforceable, that provision or part-provision will, to the extent required, be deemed to be deleted, and the validity and enforceability of the other provisions of this privacy notice will not be affected.

Unless otherwise agreed, no delay, act or omission by a party in exercising any right or remedy will be deemed a waiver of that, or any other, right or remedy.

This notice will be governed by and interpreted according to the law of Kenya. All disputes arising under the notice will be subject to the exclusive jurisdiction of the Kenyan courts.

19. Changes to this notice

This notice was last updated on 09/12/2023. We may change this policy by updating this page to reflect changes in the law or our privacy practices. However, we will not use your Personal Data in any new ways without your consent.